

# STATE OF NEW YORK

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2102--A

2025-2026 Regular Sessions

## IN ASSEMBLY

January 15, 2025

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Introduced by M. of A. FALL, MEEKS, K. BROWN, GRIFFIN, SHRESTHA -- read once and referred to the Committee on Health -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to prohibiting the sale of vape products that are made to be attractive to or target persons under the age of twenty-one

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 1399-cc of the public health law is amended by  
2 adding a new subdivision 8 to read as follows:

3 8. Any person operating a place of business wherein tobacco products,  
4 herbal cigarettes, liquid nicotine, shisha, electronic cigarettes, roll-  
5 ing papers or smoking paraphernalia are sold or offered for sale is  
6 prohibited from selling, distributing, permitting the sale, offering for  
7 sale or displaying for sale any such product that is made to be attrac-  
8 tive to or target persons under the age of twenty-one or is sold in  
9 packaging that is made to be attractive to or target persons under the  
10 age of twenty-one, pursuant to department regulations.

11 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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